

Nand Kishore v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2014 · WRIT - C No. 16706 of 2014 · **Writ disposed of; petitioner relegated to s.287-A UPZA&LR**

HEADNOTE

A writ against a recovery citation for domestic electricity arrears will not be entertained where bill or assessment disputes lie under the U.P. Electricity Supply Code, 2005, and a citation issued as arrears of land revenue is to be assailed in a suit under Section 287-A of the U.P.Z.A. & L.R. Act, particularly when the consumer has already sued for an injunction against the same dues. Highly factual questions of supply and quantum cannot be decided on affidavits.

FACTUAL SUMMARY

Nand Kishore challenged a recovery citation dated 22 August 2013 seeking Rs. 35,321 as arrears of land revenue on domestic connection No. 404008, taken in 1998. He alleged that no bills were ever served after the connection and that wooden poles had long fallen, leaving him without supply. The distribution licensee (Madhyanchal Vidyut Vitran Nigam) showed that he had already filed Suit No. 394 of 2013 for an injunction against realisation of the same dues. Recovery had been stayed pending production of bills and any demand notice.

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Where the dispute is as to assessment or electricity bills, the U.P. Electricity Supply Code, 2005 supplies the remedy; where the dispute is as to a recovery citation issued under the U.P.Z.A. & L.R. Act, a suit under Section 287-A of that Act is the contemplated remedy. A writ court will not, on affidavits, decide highly factual questions of quantum due or whether supply continued after 1998, especially when the consumer has already filed a civil suit for injunction against realisation of the same dues. Relief against the citation was refused and the petition was disposed of with liberty to pursue Section 287-A. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS WERE SERVED AFTER 1998 AND WHAT AMOUNT, IF ANY, WAS DUE

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NOT DECIDED — WHETHER ELECTRICITY SUPPLY CONTINUED TO THE PETITIONER AFTER THE WOODEN POLES FELL

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